

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #8	CCRB Case #: 201507610	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/06/2015 2:30 AM	Location of Incident: § 87(2)(b)	Precinct: 71	18 Mo. SOL 3/6/2017	EO SOL 3/6/2017	
Date/Time CV Reported Wed, 09/09/2015 11:17 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/09/2015 11:17 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Charles Arnone	03642	950021	071 PCT
2. LT Luis Machado	00000	940403	071 PCT
3. Officers			
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ryan Damora	06628	951652	071 PCT
2. POM James Harkins	13542	952831	071 PCT
3. SGT Abraham Badillo	00568	936162	071 PCT
4. POF Lauren Jamieson	05551	938710	071 PCT
5. POF Jacqueline Hoder	24348	934991	071 PCT
6. POF Ana Tenorio	25418	946567	071 PCT
7. POF Keyshawn James	05358	930413	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A. LT Luis Machado	Abuse: Lt. Luis Machado entered § 87(2)(b).	§ 87(2)(b)
B. POM Charles Arnone	Abuse: PO Charles Arnone entered § 87(2)(b)	§ 87(2)(b)
C. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
D. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) § 87(2)(b)	§ 87(2)(b)
E. Officers	Force: Officers used pepper spray against § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)

Case Summary

On September 6, 2015, at approximately 2:30 am, § 87(2)(b) and § 87(2)(b) were on the front porch of their single-family residence at § 87(2)(b) (hereafter referred to as “§ 87(2)(b)” in Brooklyn, along with other members of the extended § 87(2)(b) family. Present inside the house were brothers § 87(2)(b) and § 87(2)(b) who reside immediately next door at § 87(2)(b) (hereafter referred to as “§ 87(2)(b)”). Present in the general vicinity of § 87(2)(b)'s porch was § 87(2)(b). On the night of the incident – which falls on Labor Day Sunday, and the annual celebration known as “J’ouvert” – § 87(2)(b) was the site of a backyard party attended by many guests. § 87(2)(b) and § 87(2)(b) were all present for the party, but left shortly prior to 2:30 am, at which time a large street altercation erupted on § 87(2)(b) directly outside the two homes. The altercation drew a large police response to the scene. Officers ultimately approached § 87(2)(b)'s front porch and informed § 87(2)(b) that they were looking for the perpetrator of an assault, who they believed was armed and inside the house. Officers then moved onto the porch, and began looking through the front windows of the house, into a living room immediately past the porch. Upon looking through the windows, officers claimed that two individuals inside the living room – § 87(2)(b) and § 87(2)(b) – were actively fighting. Soon thereafter, officers opened one of the windows, and entered the living room through the window (**Allegations A and B**). These officers then opened the main door, and allowed other officers to enter through the door. Officers remained in the house for approximately thirty minutes, during which time § 87(2)(b) was arrested. While being handcuffed inside basement of the house, an officer told § 87(2)(b) “Nobody’s down here, I could do whatever I want to, I’ll fuck you up.” (**Allegations C and D**) At some point in the night, officers outside § 87(2)(b) pepper sprayed § 87(2)(b) and § 87(2)(b) (**Allegation E**). The investigation obtained video surveillance footage documenting the incident (See: Board Review 01 – § 87(2)(b)'s Statement; Board Review 04 – § 87(2)(b)'s Statement; Board Review 08 – § 87(2)(b)'s Statement; Board Review 09 – § 87(2)(b)'s Statement; Board Review 36, 37, 38 - Video Footage Segments #1, #2, #3; Board Review 45 – Annotated Video Still; Board Review 35 - Video Footage Transcription). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. A notice of claim was not filed. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

§ 87(2)(b) and § 87(2)(b) have not filed any previous CCRB cases.

Lt. Luis Machado has been a member of service for 10 years: during his tenure, Lt. Machado has been a subject in 12 CCRB cases and 27 allegations, none of which were substantiated. § 87(2)(g)

PO Charles Arnone has been a member of service for 4 years: during his tenure, PO Arnone has been a subject in 5 CCRB cases and 12 allegations, one of which was substantiated (CCRB # 201307172, Vehicle Search, Command Discipline A). § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- The incident activated a large, precinct-wide police response, and an unknown number of police officers -- at minimum, at least 12 officers – ultimately entered § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- § 87(2)(g)
§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(g) description of the officer – a Hispanic male, 5’10” tall, heavy-set, with black hair –
§ 87(2)(g) PO Charles Arnone, PO Ryan Damora, PO James Harkins, and Lt. Luis Machado, the only officers identified as having entered the house, could not identify any other officers involved in § 87(2)(b) s arrest. § 87(2)(g)
§ 87(2)(g)
- § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegations not pleaded

- **Force:** While interacting with officers on the porch, § 87(2)(b) lost a tooth. However, § 87(2)(b) § 87(2)(b) stated that this tooth was loose prior to the incident. Moreover, § 87(2)(b) did not allege any force, and did not suggest that officers directly caused her tooth to be dislodged. § 87(2)(g)
- **Property Damage:** § 87(2)(b) alleged that officers caused damage to her house, specifically stating that officers damaged a second floor bedroom door frame, and shattered a side window facing the driveway. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A – Abuse: Lt. Luis Machado entered § 87(2)(b)

Allegation B – Abuse: PO Charles Arnone entered § 87(2)(b)

It is undisputed that Lt. Machado directed officers to enter § 87(2)(b) after being informed that officers were attempting to apprehend the suspected perpetrator of an assault from inside the house. It is also undisputed that Lt. Machado, PO Arnone, PO Damora, and PO Harkins entered the house to apprehend the suspected perpetrator, and that this perpetrator, who fled the scene, was ultimately never apprehended. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

In her CCRB testimony, § 87(2)(b) stated that shortly prior to 2:30 am, a large street altercation erupted on § 87(2)(b) instigated by residents of § 87(2)(b), a basement apartment across the street. The § 87(2)(b) residents were a long-standing neighborhood nuisance, and often caused problems for the § 87(2)(b) family. Somehow, § 87(2)(b)'s daughter, § 87(2)(b) had unwittingly become involved in the melee, and was punched in the fighting. After the melee dissipated, and § 87(2)(b) was secure on § 87(2)(b)'s porch, § 87(2)(b) and § 87(2)(b) came to the porch, from the still-active party next door. When § 87(2)(b) – who was highly intoxicated – learned that § 87(2)(b) § 87(2)(b) was hit, he became very irate, causing § 87(2)(b) to forcibly take him inside § 87(2)(b). Before § 87(2)(b) was taken inside, officers had also responded to the scene. § 87(2)(b) briefly spoke with one of the responding officers, who she knew, and advised her that the “usual suspects” at § 87(2)(b) had instigated the melee. However, after § 87(2)(b) was taken inside, approximately four officers approached § 87(2)(b)'s front yard, at which point an officer told § 87(2)(b) “The people across the street say someone went in with a gun and a knife.” When § 87(2)(b) told the officers that nobody in the house had a gun or a knife, the officer insisted that a “male perpetrator” had fled into § 87(2)(b). At this point, the officers were inside the front yard, approaching the porch. When they reached the porch, the officers moved § 87(2)(b) aside, climbed onto the porch, and surrounded the main door. While the officers continued to state that a “perpetrator” was in the house, § 87(2)(b) and the other § 87(2)(b) family members continued to state that nobody had entered their house with weapons. At around this time, an officer looked through one of the porch windows, into a living room immediately past the porch. Inside, § 87(2)(b) was still attempting to calm § 87(2)(b). Upon looking in, the officer stated, “they’re fighting in there!” Shortly thereafter, approximately ten officers opened one of the porch windows, and entered the living room through the window. § 87(2)(b) did not know what officers did inside the house, because she largely remained on the porch. At some point in the night, § 87(2)(b) was escorted out of the house in handcuffs (See: Board Review 01 - § 87(2)(b)'s Statement).

§ 87(2)(g)

§ 87(2)(b) stated that when officers responded to the scene after the melee subsided, they initially approached the instigators of the fight, a group of females gathered by § 87(2)(b). § 87(2)(b) who was standing outside § 87(2)(b) heard officers speaking to the females, and overheard one of the females say something about § 87(2)(b) who was

standing nearby, in the vicinity of § 87(2)(b)'s gated driveway. § 87(2)(b) was unclear about whether § 87(2)(b) was standing behind the gated driveway, or in front of it, but was certain that he had not been involved in the melee. Immediately after the female mentioned § 87(2)(b) approximately four officers approached § 87(2)(b) and surrounded him, telling him that "somebody said you did something." § 87(2)(b) responded that he did not know what the officers were talking about, and that he had not done anything. § 87(2)(b) then turned around, walked away from the officers at the gate, and went inside § 87(2)(b). These officers, along with other officers, then entered the front yard of § 87(2)(b) and came to the porch. § 87(2)(g)

However, § 87(2)(b) stated that he was not inside § 87(2)(b) when officers entered the living room, and that he had not been concerned with § 87(2)(b). Rather, § 87(2)(b) stated that § 87(2)(b) intoxicated and irate, was being monitored by his brother § 87(2)(b). § 87(2)(b) did not see what officers did inside the house (See Board Review 02 — § 87(2)(b)'s Statement).

§ 87(2)(g) After the officers entered through the window, an officer opened the front door, allowing other officers on the porch to enter through the door. § 87(2)(b) followed these officers inside, and saw them initially enter the basement. The officers then returned to the first floor, and went to the second floor. When § 87(2)(b) saw the officers stand by her closed bed room door, she went upstairs and opened the door for them, to show that only her sleeping husband was inside. § 87(2)(b) then returned downstairs, and did not know what the officers did afterwards. § 87(2)(b) did not see the officers enter any of the four bedrooms on the second floor when she was upstairs. § 87(2)(b) did not see or hear officers forcibly open, and in the process damage, any bedroom doors on the second floor (See Board Review 03 — § 87(2)(b)'s Statement).

In his CCRB testimony, § 87(2)(b) stated that while he was highly intoxicated on the night of the incident, he was prevented from fighting in the melee, after his brother, § 87(2)(b) and several members of the § 87(2)(b) family, forcibly brought him inside § 87(2)(b). As he was being pulled into § 87(2)(b), § 87(2)(b) observed police officers arrive on § 87(2)(b). Once inside § 87(2)(b)'s living room, § 87(2)(b) and § 87(2)(b) began fighting, shouting, pushing, and punching each other for approximately a minute, as several § 87(2)(b) family members stood by. As the two were fighting, § 87(2)(b) suddenly saw police officers on the porch, immediately past the living room windows, attempting to open one of the windows. At this time, others in the living room instructed § 87(2)(b) to go downstairs to the basement, which he immediately did. Officers ultimately followed § 87(2)(b) to the basement, and arrested him there. At the time, § 87(2)(b) did not know why he was being arrested (See Board Review 04 — § 87(2)(b)'s Statement).

§ 87(2)(g) § 87(2)(b) did not witness the officers' entry through the window, and could not speak substantively to the preceding sequence of events on the porch (See Board Review 05 — § 87(2)(b)'s Statement).

Despite numerous contact attempts by phone and mail, and two field visits to § 87(2)(b) the investigation was unable to obtain a statement from § 87(2)(b)

At the onset of the investigation, § 87(2)(b) and § 87(2)(b) showed investigators video footage of the incident, captured and retained on their phones. The footage was limited in duration and quality, and only showed officers on § 87(2)(b)'s porch. § 87(2)(b) and § 87(2)(b) were ultimately uncooperative in transmitting the video to the investigation, despite numerous and extensive efforts expended by the investigation.

In their CCRB testimonies, PO Arnone, PO Damora, and PO Harkins all stated that they responded to the scene after receiving multiple radio calls regarding a knife assault, possibly against children, at or around § 87(2)(b). When the officers responded, they realized other officers had already arrived on the scene. § 87(2)(g)

§ 87(2)(b). However, all the three officers stated that they ultimately encountered a group of individuals outside § 87(2)(b), all of whom appeared to have been injured in a physical altercation. PO Arnone and PO Damora stated these individuals, at least three in number, were disheveled and wearing torn and bloodied clothes. PO Harkins stated that the individuals were bruised, and had bloodied faces, legs, and arms. At this point, all three officers surmised that they were dealing with the aftermath of a large altercation. PO Arnone, PO Damora, and PO Harkins all stated that these injured individuals then proceeded to identify the individual who assaulted them. PO Arnone stated that approximately three individuals pointed across the street, telling the officers “that’s the guy right there, he did this, he stabbed us.” PO Damora corroborated PO Arnone. PO Harkins stated that exactly one member of the group, a Hispanic female, told the officers that someone had cut her leg, and then pointed across the street while saying “that’s the guy who cut me.” PO Arnone, PO Damora, and PO Harkins all testified that the individuals pointed directly at a heavy-set black male, wearing a red shirt, standing on the sidewalk immediately outside § 87(2)(b) § 87(2)(g)

§ 87(2)(b). After further confirming that the individuals were pointing at the red-shirted black male, the officers then proceeded to approach § 87(2)(b) (See: Board Review 12 – PO Arnone’s Statement; Board Review 13 – PO Damora’s Statement; Board Review 14 – PO Harkins’ Statement).

PO Arnone, PO Damora, and PO Harkins, along with additional officers, stopped § 87(2)(b) immediately outside a gated driveway belonging to § 87(2)(b). When the officers asked him about what had happened, § 87(2)(b) responded that he did not do anything. Before the officers could further question § 87(2)(b), a black female suddenly stepped into the officers’ circle around § 87(2)(b) and began interjecting, telling the officers that § 87(2)(b) had done nothing. The female then began pushing the officers, at which point § 87(2)(b) managed to slip behind the drive-way gate and flee into § 87(2)(b)'s front yard. PO Arnone, PO Damora, and PO Harkins, along with additional officers, pursued § 87(2)(b) through the front yard and to the porch, at which point § 87(2)(b) ran into § 87(2)(b) through the main door, closing it behind him. On the porch, the officers were met by a large crowd of hostile civilians, some of whom began pushing the officers. § 87(2)(g)

§ 87(2)(g) all three officers stated that § 87(2)(b) after making physical contact with officers, somehow managed to evade them, and ultimately make his way inside § 87(2)(b).

Soon thereafter, PO Arnone, PO Damora, and PO Harkins observed, through the porch windows, that § 87(2)(b) and § 87(2)(b) were actively fighting in a living room immediately past the porch. Additional officers, including supervisors, had now arrived on the porch. At this point, PO Arnone, PO Damora, and PO Harkins stated that they overheard a supervisor on the porch direct them to enter the residence. In response, PO Arnone opened an already ajar porch window and climbed through into the living room inside, and additional officers followed behind him. Upon entering the living room, PO Arnone observed § 87(2)(b) flee from the living room, through an adjoining doorway. Seeing that § 87(2)(b) was sitting stationary on the floor, PO Arnone assumed that the officers following behind him would apprehend § 87(2)(b) and focused on pursuing § 87(2)(b). PO Arnone then went through the adjoining doorway, which led into a basement, where he apprehended § 87(2)(b) with other officers. PO Harkins and PO Damora both entered § 87(2)(b) through the main door, once officers opened it from inside. Upon entering, PO Damora proceeded to the basement, and found that § 87(2)(b) had already been apprehended. Upon entering, PO Harkins proceeded to the second floor, where he checked the hallway for the red-shirted suspect. Finding it clear, PO Harkins returned downstairs and exited § 87(2)(b). PO Arnone, PO Damora, and PO Harkins later learned that § 87(2)(b) had fled the scene, but were unable to explain how he evaded apprehension (See: Board Review 12 – PO Arnone’s Statement; Board Review 13 – PO Damora’s Statement; Board Review 14 – PO Harkins’ Statement).

In his CCRB testimony, Lt. Machado stated that upon arriving at § 87(2)(b)’s porch, he conversed with PO Arnone, who informed him that the suspected perpetrator of a stabbing was inside the house. PO Arnone informed Lt. Machado that officers had pursued the suspect, a black male wearing a red-shirt, as he fled into the house. When Lt. Machado looked through the porch window, he saw a red-shirted black male – § 87(2)(b) – inside the living room, sitting on the floor. Another black male, § 87(2)(b) was standing above him. At this point, Lt. Machado directed PO Arnone to enter through the window. Lt. Machado followed PO Arnone through the window, and entered the living room. As he was entering, Lt. Machado observed § 87(2)(b) flee through a doorway adjoining the living room. Simultaneously, § 87(2)(b) approached PO Arnone and blocked him with his body, obstructing his movement. While § 87(2)(b) was ultimately arrested, for obstructing governmental administration § 87(2)(b) fled the scene. Lt. Machado was unable to explain how § 87(2)(b) evaded apprehension (See Board Review 20 – Lt. Machado’s Statement).

§ 87(2)(g). PO Jaqueline Hoder, PO Lauren Jamieson, and PO Keyshawn James, who responded to § 87(2)(b) § 87(2)(g). While these officers observed a female with a lacerated foot, inside a basement apartment at the location, they were not aware that the injury was caused by an assault. PO Hoder, PO Jamieson, and PO James stated that no civilian on the scene made any allegations against a red-shirted male, or against § 87(2)(b) and that no civilian discussed a stabbing that night. PO Hoder, PO Jamieson, and PO James were not involved with any of the police

activity at § 87(2)(b) (See: Board Review 16 – PO Hoder’s Statement; Board Review 19 - PO Jamieson’s Statement; Board Review 18 - PO James’ Statements). The CCRB also interviewed Sgt. Abraham Badillo and Sgt. Luis Lerebours. While Sgt. Badillo acknowledged being present on the porch, while officers were attempting to apprehend an unknown individual, his knowledge of the incident was extremely limited and vague, and he did not see officers enter § 87(2)(b) or authorize officers to do so (See Board Review 17 – Sgt. Badillo’s Statement). Sgt. Lerebours was present on § 87(2)(b) at the time of the incident, but had no knowledge of the police activity at § 87(2)(b) and did not see officers enter § 87(2)(b) (See Board Review 16 – Sgt. Lerebours’ Statement).

The investigation obtained phone statements from § 87(2)(b) and § 87(2)(b) residents of the basement apartment at § 87(2)(b). Both individuals acknowledged being involved in a large street altercation on the night of the incident. § 87(2)(b) stated that § 87(2)(b) was also involved in the fight, and that § 87(2)(b) had struck him on the head with a liquor bottle, which shattered and caused his head to bleed. When officers on the scene noted § 87(2)(b)’s injury, he reported that § 87(2)(b) had hit his head with a bottle. While § 87(2)(b)’s arms, hand, and feet were cut by a female during the fight, she had no physical interactions with § 87(2)(b) and made no statements about § 87(2)(b) to officers (See: Board Review 10 - § 87(2)(b) Statement; Board Review 11 - § 87(2)(b) Statement).

The investigation obtained video surveillance footage of the incident, and relevant segments were spliced for board review (see files below). However, while these segments are useful as a general key to the incident location, the footage does not document the police activity on § 87(2)(b)’s porch. The footage documents, very poorly, some police activity outside § 87(2)(b)’s gated driveway. However, due to the poor video quality and the night time setting, the footage cannot be used to corroborate or contradict either the civilians’ or the officers’ testimonies regarding § 87(2)(b)’s flight and pursuit. § 87(2)(g) (See: Board Review 36, 37, 38 - Video Footage Segments #1, #2, #3; Board Review 45- Annotated Video Still; Board Review 35- Video Footage Transcription).



Video Segment 1 - Fight.mp4



Video Segment 2 - Officers Approach § 87(2)(b).mp4



Video Segment 2 - Officers Approach § 87(2)(b).mp4

The investigation obtained the event documents and the audio recordings of two triggering 911 calls, as well as the police radio communications for the relevant time period. At 2:27 am, an individual identified as § 87(2)(b) called 911 to report that her children were "being assaulted in their home." When asked who assaulted her children, § 87(2)(b) said "neighborhood boys on the block." (See: Board Review 31 – § 87(2)(b) 911 recording;

Board Review 34 – Summary of 911 Recordings) At 2:30 am, an individual identified as § 87(2)(b) called 911 and stated: "My sister was cut with a glass bottle, and so was my brother, he's bleeding from his head and she's bleeding from her feet." § 87(2)(b) named § 87(2)(b) as the perpetrator, and stated that he "came from a barbeque across the street." § 87(2)(b) described § 87(2)(b) as a § 87(2)(b) 5'9" tall, heavy-set black male wearing a red shirt (See: Board Review 32 – § 87(2)(b) 911 recording; Board Review 34 – Summary of 911 Recordings). Subsequently, a central dispatcher broadcasted this information to all units in the 67th and 71st Precincts, stating (in regards to the § 87(2)(b) assault), that a brother and sister had been cut by a bottle, and that the perpetrator was described as a heavy-set black male wearing a red-shirt. The event documents do not reference § 87(2)(b) in any manner, but note that multiple sectors, including sectors D, G, and I, were in the area at the time of the incident, responding to the multiple calls at § 87(2)(b) (See Board Review 30 – Event Documents).

In Payton v. New York, the United States Supreme Court ruled that warrantless entries into a private residence are presumptively unreasonable, unless there are exigent circumstances, in addition to pre-existing probable cause, justifying an exception to the general warrant requirement (See Board Review 41 – Payton v. New York, 445 U.S. 573). In New York State, factors indicating the presence of exigent circumstances have been identified as follows: 1) the serious or violent nature of the offense; 2.) there is reason to believe that the suspect is armed; 3.) the police have probable cause; 4.) there is strong reason to believe the suspect is in location to be entered; 5.) there is likelihood of the suspect escaping; 6.) whether or not the police entry is peaceful. (See Board Review 42 – People v. Cruz, 41 Misc. 3d 1222(A)). Regarding emergencies, New York State's Court of Appeals outlined the following: (1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. (2) The search must not be primarily motivated by intent to arrest and seize evidence. (3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched.'" (See Board Review 43 – People v. Musto, 106 A.D.3d 1380).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation C: Abuse - An officer threatened § 87(2)(b) with the use of force.

Allegation D: Discourtesy - An officer spoke discourteously to § 87(2)(b)

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) stated that approximately 12 officers apprehended him at § 87(2)(b)'s basement, and acknowledged that he resisted arrest. While the officers were placing him in handcuffs, § 87(2)(b) stated an officer told him: "Nobody's down here, I could do whatever I want to, I'll fuck you up." § 87(2)(b) described the officer who made this remark as a Hispanic male, 5'10" tall, heavy-set, with black hair (See Board Review 04 – § 87(2)(b)'s Statement).

PO Arnone, PO Damora, PO Harkins, and Lt. Machado all denied overhearing any officer on the scene make the remark to § 87(2)(b). All four officers stated that no officer on the scene threatened § 87(2)(b) with force, or used profanity against him.

§ 87(2)(g)
[REDACTED]

Allegation E: Force - Officers used pepper spray against § 87(2)(b) and § 87(2)(b)

[REDACTED]

The investigation identified two individuals – brothers § 87(2)(b) and § 87(2)(b)

[REDACTED]
-- who alleged that they were pepper sprayed by officers on § 87(2)(b). The investigation was unable to identify any other individuals who were pepper sprayed, despite multiple field visits and a canvass of § 87(2)(b) during which please contact letters were deposited at § 87(2)(b) and § 87(2)(b).

When contacted for a phone statement, § 87(2)(b) stated that he was pepper sprayed, but said he had no recollection whatsoever about the incident, because he was so intoxicated that night. Furthermore, § 87(2)(b) stated that he did not wish to cooperate with the investigation or proceed with a complaint against officers (See Board Review 08 - § 87(2)(b)'s Statement).

When contacted for a phone statement, § 87(2)(b) stated that he was pepper sprayed by approximately four officers outside § 87(2)(b) and agreed to appear for an interview at the CCRB (See Board Review 09 - § 87(2)(b)'s Statement). However, § 87(2)(b) missed his interview appointment, without providing advance notification. Thereafter, the CCRB attempted to contact § 87(2)(b) via five phone calls, and two letters. § 87(2)(b) failed to respond to the contact attempts, and did not contact the CCRB at any point.

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date